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UAE

CABINET DECISION NO. 106 OF 2025



UAE e-Invoicing penalties

What can cost you AED 5,000 every month in 2026

A practical guide to the UAE's new penalty framework and how enterprises can avoid recurring exposure.

Introduction

The UAE e-invoicing mandate appears straightforward, yet the newly released penalty framework in Cabinet Decision No. 106 of 2025 reveals a far more demanding compliance environment than most organisations realise.

The introduction of structured electronic invoices and near real time reporting marks a major shift in the UAE's digital tax transformation. With penalties now clearly defined for failures in system implementation, invoice transmission and outage notifications, organisations must prepare for a regime where non compliance is not only costly but also operationally disruptive.

This paper explains the penalty structure, highlights common risks and offers a practical preparedness roadmap to ensure that systems, data and processes are aligned well before full enforcement begins.

"Non compliance is not only costly — it is operationally disruptive."

Background

The UAE officially introduced its national e invoicing mandate through the e invoicing Framework published on 29 September 2025. Under this framework, taxpayers are required to issue, transmit and store structured electronic invoices and electronic credit notes in a format that supports automatic electronic processing.

In addition to issuing standardised e invoices, businesses must also comply with e reporting obligations. These obligations require the transmission of invoice data to the Federal Tax Authority (FTA) within specified timelines.

To support the mandate and ensure consistent adoption, the UAE issued Cabinet Decision No. 106 of 2025. The decision establishes administrative penalties for violations of e invoicing and e reporting requirements and gives clarity on how breaches will be enforced.

Taxpayers that had opted for voluntary e invoicing under earlier rules are temporarily exempt from penalties until the full mandate becomes effective.

500+

GCC businesses trust ClearTax for e-invoicing compliance

ASP

Accredited Service Provider recognised under the FTA framework

2026

Full enforcement deadline under Cabinet Decision No. 106

Key Definitions

Cabinet Decision No. 106 introduces several important definitions that shape compliance expectations:

Electronic Invoice and Electronic Credit Note: Structured, machine readable documents that meet the FTA's required format and allow automated processing.

Issuer: A person obliged to issue and transmit e invoices and electronic credit notes.

Recipient: A person that must be able to receive compliant e invoices and electronic credit notes.

System Failure: Any technical malfunction or system unavailability that prevents compliance with e invoicing obligations.

These definitions form the basis for identifying where responsibility lies in the event of non compliance.

Penalty Framework

The Cabinet Decision sets out penalties for several types of breaches. The key categories are summarised below:

VIOLATION	PENALTY
Failure to implement an e invoicing system, including timely appointment of an Accredited Service Provider (ASP)	AED 5,000 per month or part thereof
Late issuance or transmission of e invoices	AED 100 per invoice, capped at AED 5,000 per month
Late issuance or transmission of e credit notes	AED 100 per note, capped at AED 5,000 per month
Failure to notify the FTA of a system failure	AED 1,000 per day
Failure of the recipient to notify the FTA of a system failure	AED 1,000 per day
Failure to inform the ASP of updated data	AED 1,000 per day

KEY INSIGHT

These penalties are recurring. Even brief periods of non compliance can accumulate into significant financial exposure, particularly for high volume invoice environments.

Why penalties matter

The penalty framework is designed to accelerate compliance and ensure accuracy in the UAE's digital tax system. Penalties serve four strategic purposes:



Promote timely adoption of compliant e invoicing systems.



Ensure structured and interoperable invoice data across industries.



Support the UAE's broader vision of becoming a global leader in tax digitisation and transparency.



Encourage automation, validation tools and API driven reporting rather than manual processing.

For organisations, the impact goes far beyond the monetary fine. Non compliance can influence cash flow timing, supplier relationships, reporting accuracy and audit preparedness. With structured invoicing becoming a legal requirement, any breakdown in the process affects both operational stability and business performance.

Common non-compliance triggers

Based on global trends and regulator expectations, the following are the most frequent causes of penalty exposure:

1

Delayed or incorrect ASP appointment: Failure to onboard an ASP in time directly triggers monthly fines.

2

Invalid invoice structure: Invoices missing mandatory schema elements, incorrect fields or unsupported formats.

3

Rejected invoices without timely correction: Lack of automated workflows for handling rejections is a major risk.

4

Poor monitoring and alerting: Unreported system failures expose both the issuer and the recipient to per day penalties.

5

Master data errors: VAT misclassifications, incorrect TRNs, invalid customer identifiers or inconsistent product codes.

These issues are often systemic rather than transactional, and therefore require coordinated remediation across systems, governance and teams.